COOLFONT MOUNTAINSIDE ASSOCIATION
WATER & SEWER COMMITTEE (WS) CHARTER

AUTHORITY

WHEREAS, Article 11, Section 11.1 of the Bylaws states that “With the exception of the Nominating Committee, chairs of the following Committees will be appointed by the President by the time of the second meeting of the Board following the Annual Meeting: Finance; Recreational Facilities; and Development and Architectural Control. If the Chair of a committee is not a Director, the President shall appoint a Director to be liaison between the Committee and the Board. Liaison appointees will report upon actions taken by their Committees to the Board.” and

WHEREAS, Article 11, Section 11.4 of the Bylaws states, “From time to time the Board may provide for appointment of ad hoc committees or task forces from among the Members and shall specify their authority and functions.”

NOW THEREFORE, be it resolved that a Water and Sewer Committee (WS) shall be established, and that the following procedures for this Committee be adopted and implemented herewith:

RESPONSIBILITIES

This Committee shall serve at the direction of and at the pleasure of the Board of Directors (“Board”) of Coolfont Mountainside Association (“Association”). This Committee shall have no authority to speak on behalf of the Board or to bind the Association financially or contractually, unless authorized by the Board.

The primary responsibility of the Water and Sewer Committee is to advise and assist the Board in the discharge of responsibilities relating operation and maintenance of the water and wastewater (sewer) utilities.

The Committee will perform the following:

- Supports the Operations Manager in the day to day operation of the CMA Water & Sewer Utility, including:
    - Budget development and financial review regarding the CMA Water and system(s);
    - Monitoring the CMA Water and Sewer portion(s) of the budget;
    - Policy development and enforcement regarding the CMA Water and Sewer System(s);
    - Review, propose responses to, and support activities involving the CMA Water and Sewer System(s) regulatory surveys, reviews, and inspections;
    - Assist the DACC with an annual review of the current CMA architectural guidelines, "Design Guidelines and Building Regulations," regarding or involving the CMA Water and Sewer system(s); recommend and present to the DACC and the Board desired amendments.
- Review written plans for improvements on Association lands and easements there to and recommend to the Board approval or disapproval taking into account business needs, the CMA Covenants and Restrictions, and existing written policy and guidelines.
- Additional tasks assigned by the Board.
- Assist the CMA Treasurer in preparing a proposed annual budget for membership approval.

ELIGIBILITY

Committee candidates and members shall be property owners in good standing. No person shall be eligible for appointment as a Committee member unless such person is a member of the Association in accordance with CMA Covenants and Restrictions.

APPOINTMENT AND TERMS

This Committee shall be composed of 3 or more persons. Recruitment of candidates may be done through the CMA Google Group, an announcement at the Annual Meeting, or by any other means deemed appropriate by the Committee. The Board will strive to ensure that members from varying house types within the Association are represented on its committees.

Interested owners must submit a written request to the Committee or the Board for appointment to the Committee. Committee members in good standing are eligible for reappointment.

REMOVAL OF MEMBERS

The Board may remove the Committee Chairperson or Committee Member at any time.

The Chairperson may remove any Committee member at any time, for cause, in consultation with the Board.

The Committee may make recommendations to the Board regarding the removal of the Committee Chairperson.

A Committee member may be removed, upon written notice from the Committee chairperson, for failure to attend three consecutive Committee meetings without notice or explanation.

APPOINTMENT OF CHAIRPERSON

The Board President shall appoint a Committee Chair. The members of the Committee may make recommendations to the Board for the appointment of a chairperson.

The Chairperson, or their designee, shall be responsible for chairing meetings of the Committee and designate an alternate as needed.

The Chairperson shall be responsible for recording and maintaining accurate minutes of the Committee's meetings or designating an alternate to do so. Minutes shall include a record of the date, time, and place of each meeting, attendance of Committee members, subjects discussed, and any votes of the Committee.

The Chairperson will submit monthly reports to the CMA Secretary, in a timely manner, for inclusion in the Board meeting package.

MEETINGS

Committee meetings shall be held in a mutually agreed upon location of the committee members, or via teleconference and at mutually agreed intervals, but not less than once per quarter.

The Committee Chairperson, or a designee, shall be responsible for contacting the members of the Committee regarding scheduled, rescheduled, or canceled meetings.

A majority of the total number of the Committee members shall constitute a quorum. A majority vote of members while a quorum is present shall constitute a decision of the Committee. All voting shall be conducted in open session.

All Committee meetings shall be conducted generally in accordance with Robert's Rules of Order.

COMMUNICATIONS

In the interest of ensuring strong communications between the Board and the Committee, the Committee Chairperson, or a designee, will attend each regularly scheduled business meeting of the Board. The Committee representative will present Committee recommendations, update the Board on the status of pending Committee tasks, request assistance from the Board, as needed, and answer questions the Board may have regarding Committee assignments.

The Committee is expected to maintain regular communication with the Board Liaison designated by the Board.

It is expected that the Committee will provide accurate and timely information about its activities for publication via communication vehicles of the Association. It is the responsibility of the Committee to ensure that this information is updated on a regular basis.

The committee will review its charter at least biannually and recommend any proposed changes to the Board for review and approval.

APPROVAL

This charter was approved by the CMA Board on May 4, 2026, and approval is noted in the minutes of that meeting.